

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

February 22, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Ms. Ash and Mr. Collins, agenda item #13 was removed from the Consent Agenda. Upon request by Ms. Ash, and pursuant to support received by Dr. Rinne and Ms. Broyles, agenda item #16(c) was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 8, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on February 16, 2010. Motion (per Consent Agenda) carried.

Mr. Spiker moved to approve payment of vouchers as presented, seconded by Mr. Brown. Upon inquiry regarding a voucher payable to AVI, City Engineer Doug Vetter briefly reviewed the status of the Henderson Basin project, stating there is some remaining work for remapping of the flood plain prior to the project being completed. Motion carried. Voting "yes" – all members of the governing body.

Mayor Kaysen opened a public hearing for the purpose of receiving comments and input for renewal of existing City Liquor Licenses (retail, restaurant, limited retail, resort, bar and grill licenses, and microbrewery and winery permits) filed with the City Clerk's Office. City Clerk Carol Intlekofer noted for the record that one restaurant liquor licensee (Lucky 7) did not file for renewal, and reviewed the parked license status for applicants C.B. & Potts, Hitching Post and On the Border. She advised On the Border had submitted a written request for an additional one year extension, as authorized by Wyo. Statute, to become operational, and stated that the Mayflower was temporarily closed for remodeling purposes. Chris Cantwell, Director of Operations for On The Border restaurant project, reviewed the current status the project and explained, if the request for the additional year is approved, it is anticipated building construction will be completed in Oct. 2010. Upon inquiry, Captain Jeff Schulz, Interim Police Chief, reviewed underage compliance checks recently conducted, responded to inquiry concerning non-compliance of TIPS training records, and

indicated he would provide underage compliance results pursuant to checks conducted last fall. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the applications to Finance Committee.

“Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in Sections 12 and 13, Township 13 North, Range 67 West of the 6th Principal Meridian, Laramie County, Wyoming (located east of Southwest Drive, south of Interstate 80, west of BNSF Railroad, and north of Woodenshoe Drive).” Donn Edmunds questioned whether any studies had been conducted regarding accessibility to the site, expressing concerns with traffic delays and the railroad crossing in the area. Gay Woodhouse, Woodhouse Roden LLC law firm, attorney representing area home owners, requested a postponement to further review impact issues involving the proposed annexation and a Southwest Drive Transportation Drainage and Utility report that had been prepared. She cited previous postponements requested by and approved for the developer for the project, submitted a handout (on file with office of City Clerk) noting the prior postponement dates, and requested equal consideration pursuant to her client’s request for postponement. Kathleen Sheehan, property owner near the proposed annexation area, requested a six month postponement to allow time to re-evaluate her property situation and review the report. Ken Clark, applicant/developer, provided information on the drainage report, noting it was mailed to Ms. Sheehan in Aug. 2009, with Ms. Sheehan responding she did not receive the report. Reporting for Public Services Committee, Ms. Ash moved to approve on second reading, seconded by Mr. Collins. Ms. Ash moved to postpone for one month (to March 22, 2010), seconded by Mr. Collins. Upon inquiry, City Clerk Carol Intlekofer advised a one month postponement would be to March 22nd, at which time the item would be referred back to Public Services Committee for review. Discussion followed and included the following topics: Annexation request by the property owner, state statute annexation criteria and governing body’s role in determining whether criteria is met, and what would be accomplished within a 30 day postponement relative to the annexation action vs. other issues involving site plan/platting discussions. Upon inquiry, Ms. Woodhouse reiterated the request for postponement is to provide concerned area property owners the same courtesy afforded Mr. Clark (i.e. previous postponement requests approved) to allow additional time to further review documents. Ms. Case moved to amend the motion to postpone from one month to three months, seconded by Mr. Valdez. Mike Basom, Dray, Thomson, Dyekman law firm, attorney representing Mr. Clark, spoke in opposition to the motion to postpone and stated the issues of concern that have been raised regarding access, transportation, utility, and drainage should be discussed during the platting process. Speaking in favor of postponement and against the annexation generally were Ms. Sheehan and Doris Garcia, citing personal impact to property owners in the area if the annexation and proposed development of the area as proceeds and expressing concerns with health, safety and welfare of residents, and future residents, in the area. Comments followed on the time frame (one month increments) and purpose of past postponement requests made by and approved for the developer, and included statements in support of the motion to postponement by Ms. Sheehan and Ms. Woodhouse. Motion to postpone for three months failed. Voting “yes” – Ms. Case and Mr. Valdez. Voting “no” – Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mayor Kaysen. Discussion continued on the former Swan Ranch annexation action recently approved that involved similar concerns with access and traffic, and information obtained from Mr. Clark on his hesitancy to move forward with the expense of having an engineering report prepared to address issues of concern involving access, traffic, and drainage topics without knowing whether the annexation request will be approved. Motion to postpone for one month (to March 22, 2010) carried. Voting “yes” – Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Voting “no” – Ms. Ash, Mr. Brown, Mr. Pierson and Mr. Spiker.

“Ordinance creating Chapter 8.68, Vacant and Abandoned Residential Structures, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming.” Ian Cattalier, State of Wyoming, Construction Management, questioned the effect the ordinance may have on vacant properties the State recently purchased (near Safeway store off Pioneer Ave.); the abandoned property definition, and the time frame for payment according to the fee structure for abandoned properties. Upon inquiry, Dan White, City Attorney, reviewed the basic aspects and provisions of the ordinance in response to Mr. Cattalier’s inquiry. Frank Cole, developer, spoke in opposition to ordinance provisions involving specific requirements on boarding up the structures, and stated a better definition of “utilities” vs. provided “services” should be provided. Steven Miller spoke in favor of the ordinance and in support of holding property owners accountable, cleaning up blighted and abandoned residential properties, and effect on the neighborhood property values. Jeanie Tucker questioned whether there was any protection for abandoned homes located in a designated historic district and the fees to be assessed and also read a statement from Jan Nelson Schroll in support of preserving and promoting neighborhoods and registering abandoned houses. Reporting for Finance Committee, Mr. Brown stated there was no recommendation on the item from the committee. Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Dr. Rinne moved to amend Section 8.68.070 B.1. and B.2. to delete the language following the word “secured” as follows: B.1. “by the use of Phillips head two-inch screws” and B.2. “by the use of 16 penny common nails”, seconded by Mr. Collins. Motion to amend carried. Voting “yes” – all members of the governing body. Upon inquiry regarding #6 in Section 8.68.040, Mr. White advised this wording was included to obtain information regarding plans or reasons why a particular structure has been abandoned, and Officer Emmett Lusher, Code Enforcement, Cheyenne Police Dept., advised any information that can be utilized to quickly assist in identifying property ownership is useful in abating properties. Officer Lusher also advised it is important to board up properties to protect them from crime and illegal activities, indicating every City Ward has issues with abandoned properties. Comments followed regarding the difference between utilities and services. Upon inquiry, Mr. White advised the International Property Maintenance Code (IPMC) only applies to dangerous or unsafe structures that are capable of collapse, and structures unfit for human occupancy and explained it is unlawful to sell property that is in violation of the IPMC unless the new owner acknowledges and agrees to be responsible for violations. Upon further inquiry, Mr. White advised the ordinance supplements the IPMC, provides a financial incentive to property owners to maintain their properties, provides funds to assist with monitoring the properties by building officials and police, and places restrictions on the building to allow for an inspection process. Discussion followed on the purpose of the ordinance and possible future similar ordinance to address abandoned commercial buildings. Upon inquiry regarding the \$250 fee, Mr. White clarified once the abandoned building is registered and the fee paid, the building official would have a list of abandoned/vacated properties for the police and building official to monitor. Upon inquiry, Mayor Kaysen advised the authority to monitor ordinance provisions would fall under the Chief Building Official’s area with enforcement through Nuisance Control and/or Police Dept. Discussion continued on other potential changes to ordinance wording, compliance time frame and penalty provisions. Mr. Cole provided further comments on the difference between utilities and services. Upon inquiry regarding issuance of misdemeanor citations, Mr. White reviewed the role of the Chief Building Official and police department relative to issuance of citations. Comments followed on uninhabitable structures, similar legislation for abandoned commercial structures, and the terms “utility” vs. “services”. Motion to approve as amended on second reading carried. Voting “yes” – all members of the governing body.

“An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in the SW¼ NW¼ of Section 21, T. 14N., R.66W., of the 6th P.M., Laramie County, Wyoming

(located south of Plain View Road, west of Point Bluff, and north of Apache Street) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “Resolution certifying that the Governing Body of the City of Cheyenne is in agreement with the Laramie County Board of Commissioners as to the current countywide Consensus Block Grant application to the State Loan and Investment Board.” Motion (per Consent Agenda) carried. (#5185)

“Resolution authorizing the transfer of funds in the approximate amount of \$145,000 from the City’s self-funded employee health benefit plan to the general fund.” Mr. Brown moved to adopt, seconded by Mr. Spiker. Dr. Rinne moved to amend the 6th Whereas paragraph and the Now, Therefore, Be It Resolved paragraph to delete the following language at the end of the sentences: “to reduce the number of potential unpaid employee furlough days which may be imposed due to current budgetary concerns and conditions,” seconded by Mr. Collins. Comments followed on the purpose of the proposed amendment, which is to utilize the dollars toward funding of jobs in lieu of any potential reduction in employee force measures instead of specifically referencing unpaid employee furlough days. Mayor Kaysen stated the monies are a one-time lump sum amount and not an ongoing revenue source, and that the intent of the resolution is to hopefully defer/reduce the need for furlough days. Upon inquiry, City Treasurer Barb Dorr confirmed the money is a one-time infusion of money. Brief discussion followed on the purpose of the proposed amendment, and time frame of funding transfer (current or next fiscal year). Motion to amend failed. Voting “yes” – Ms. Ash and Dr. Rinne. Voting “no” – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Discussion followed on possible unpaid employee furlough days, concern with protection of employee jobs, retaining the funding relative to re-implementation of a possible future self-funded program as a health insurance option, and fiscal responsibility. Motion carried. Voting “yes” – Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting “no” - Ms. Ash, Ms. Case and Dr. Rinne. (#5186)

[CA] “Resolution re-appropriating the Fiscal Year 2010 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and §16-4-113” -- referred to Finance Committee (sponsors - Mr. Brown and Mr. Spiker).

[CA] “Resolution designating the Cheyenne Animal Shelter, 800 Southwest Drive, Cheyenne, Wyoming, as an official animal shelter and animal control facility pursuant to Section 6.20.010 of the Code of the City of Cheyenne” -- referred to Public Services Committee (sponsor - Ms. Broyles).

[CA] Notice and Consent to Assignment of the Juvenile Housing agreement between the City of Cheyenne and Cornerstone Programs Corporation dba Jeffrey C. Wardle Academy to Southeastern Wyoming Juvenile Services, LLC. Motion (per Consent Agenda) carried. (#5460)

[CA] Community Based Family Support and Preservation Grant contract between the Wyoming Department of Family Services, Protective Services Division, and City of Cheyenne, Youth Alternatives, to provide a family counselor to assist with transitional services. Motion (per Consent Agenda) carried. (#5514)

Wyoming Children’s Trust Fund Grant contract between the Wyoming Department of Family Services, Protective Services Division, and City of Cheyenne, Special Friends - Youth Alternatives, for the Special Friends Outreach Program. Ms. Ash declared a conflict of interest

(participant on the Trust Fund Board) and vacated Council Chambers. Mr. Brown moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present in City Council Chambers. Following announcement of the vote, Ms. Ash returned to Council Chambers. (#5515)

[CA] Energy Performance contract between the City of Cheyenne and Long Building Technologies, Inc. to provide equipment and services designed to save energy at 52 City owned facilities to include a lighting retrofit, occupancy sensor installation, modular boiler in Fire Station #1, an energy conservation education program and measurement and verification of energy savings. Motion (per Consent Agenda) carried. (#5516)

[CA] Agreement between the City of Cheyenne and the Wyoming Department of State Parks & Cultural Resources for a Land and Water Conservation Fund Grant for a basketball court in Martin Luther King Park. Motion (per Consent Agenda) carried (City’s portion- cash \$9,597 and in-kind match \$9,416). (#5517)

[CA] Lease Agreement between the City of Cheyenne, acting by and through its Board of Public Utilities (BOPU), and Swan Ranch Development for Swan Ranch Development to construct and to donate to BOPU a private water and sanitary sewer system that runs through the Swan Ranch Rail Park -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, acting by and through its Board of Public Utilities (BOPU), and Cheyenne Frontier Days, to outline responsibilities for the operation and maintenance of the sanitary waste station at Lake Absaraca -- referred to Finance Committee.

[CA] Consideration of FAA Grant No. 3-56-0005-45 between the City of Cheyenne, County of Laramie, and the Cheyenne Regional Airport Board for the Rehabilitation of Taxiways A3 and B2 -- referred to Finance Committee.

[CA] Amendment No. 4 to State Lease Agreement No. 8-09466 between the City of Cheyenne and State of Wyoming for parking spaces in the Cox Parking Facility -- referred to Finance Committee.

[CA] Consideration of Bid #R-8-10 for the Surplus Sale of “Two 1993 Toro Greens Aerators” from the City of Cheyenne Golf Department. Motion (per Consent Agenda) carried (Mountain Vista Greens, Ft. Collins, CO (one aerator), revenue to City \$1,200.00).

[CA] Consideration of Bid #M-13-10 for a contract between S&S Builders, of Cheyenne, WY, and the City of Cheyenne for the Randall Bridge Enhancements Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (rejected all bids).

Under other City business: John Palmer expressed concerns with the governing body’s public participation process, commented on a recent editorial in the local newspaper written by a member of City Council, and the city’s budget condition and costs associated with city services and maintenance areas. Joe Elkins, BC Cab, local business owner, expressed concerns with public transport taxicab companies operating in violation of state law, referencing City Code provisions, and lack of enforcement for the violations, which would provide revenue to the City to assist with its financial situation. Pacomio Sandoval also expressed concerns with the public participation process at City Council meetings and with budget concerns and expenses, specifically referencing the City’s past Taco John’s Events Center and Belvoir Ranch purchases. Donn Edmunds

commented on the budget situation and referenced a community in Colorado that is experiencing the financial inability to provide support services involving urban growth (annexation) areas, and urged the governing body to carefully consider housing development growth/annexation approval actions in conjunction with the City's financial ability to support affiliated services.

Mr. Collins made statements expressing his opinion regarding a recent executive session of the governing body and allowable discussion topics.

City Attorney Dan White requested the governing body meet in executive session concerning a pleading/filing involving litigation. Ms. Broyles moved to meet in executive session, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and other staff as requested by the City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: Executive session convened at 8:16 p.m.)

There being no further business to come before the governing body prior to executive session, the meeting was officially adjourned at 8:34 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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